



INDIAN POLITY

- JUDICIAL ACTIVISM
- JUDICIAL RESTRAINT
- PUBLIC INTEREST LITIGATION

MODULE – 76



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THE TRAJECTORY OF SUPREME COURT FROM CONSERVATIVE TO LEGISLATIVE

1

Initially, the Supreme Court was a conservative institution.



2

Supreme Court in fact, abandoned several “Anglo-Saxon” procedural rules and taken the steps towards “Complete Justice” (Article 142).

3

Judges were painted as crusading heroes.

4

The Court was called “the last refuge of the oppressed” by 1990s and 2000s.

5

It led to “judicial activism”. Court was beginning to engage in a host of administrative activities, which include welfare schemes to anti-corruption initiatives.



6

The Constitutional Court had become a Supreme “Administrative” Court.

JUDICIAL ACTIVISM

- 1** It is a dynamic process of judicial outlook in a changing society.
- 2** It motivates judges to depart from the traditional precedents.
- 3** They take decisions in favour of progressive and new social policies.
- 4** They interpret law in the social context. Sometimes they go into the legislative domain, sometimes their rulings are based on personal and political considerations, rather than on existing law.

WHAT THE PROPONENTS SAY?

- 1** Law should be interpreted and applied based on ongoing changes in conditions and values.
- 2** Society changes and their beliefs and values also change, then court should make the decisions to reflect those changes.
- 3** Judges should use their powers to correct injustices, when the other branches of the Government are not doing it.



THE OPPOSITE IS ... JUDICIAL RESTRAINT

- 1 It encourages the judges to limit the exercise of their own power.
- 2 It asserts that the judges should hesitate to strike down the laws, unless they are obviously unconstitutional.
- 3 The Principle of upholding established precedent is seen by the judges.
- 4 Judges should not read their own philosophies.
- 5 Judges has no mandate to act as policy makers, they should leave it to the elected political branches.

MEANING IN A NUT SHELL

- 1 The original intent of those who wrote the Constitution should be respected.
- 2 Precedent, i.e., past decisions in earlier cases should be seen.
- 3 The court should not enter into policy making.



SUPREME COURT JUDICIAL REVIEW

MEANING OF JUDICIAL REVIEW



The U.S. Supreme Court established the doctrine of **judicial review** through its decision in *Marbury v. Madison* (1803).

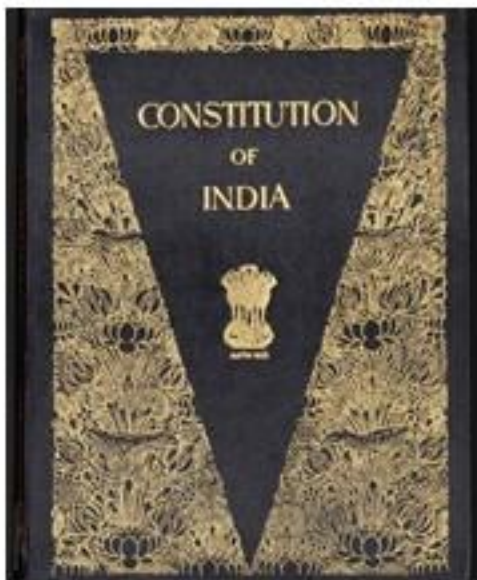
- 1 Judicial review is the power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both the Central and State governments.
- 2 On examination, if they are found to be violative of the Constitution (*ultra vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the judiciary.

SUPREME COURT

JUDICIAL REVIEW

IMPORTANCE OF JUDICIAL REVIEW

Judicial review is needed for the following reasons:



CONSTITUTION IS SUPREME LEX.

Every organ of government, be it the executive or the legislature or the judiciary, derives its authority from the Constitution and it has to act within the limits of its authority.

- a** To uphold the principle of the supremacy of the Constitution.
- b** To maintain federal equilibrium (balance between the Centre and the states).
- c** To protect the Fundamental Rights of the citizens.

SUPREME COURT JUDICIAL REVIEW

CONSTITUTIONAL PROVISIONS FOR JUDICIAL REVIEW

Though the phrase 'Judicial Review' has nowhere been used in the Constitution, the provisions of several Articles explicitly confer the power of judicial review on the Supreme Court and the High Courts.



Some of the provisions are explained:

- Article 13 declares that all laws that are inconsistent with or in derogation of the Fundamental Rights shall be null and void.
- Article 32 guarantees the right to move the Supreme Court for the enforcement of the Fundamental Rights
- Article 131, 132, 133, 226 and so on....

SUPREME COURT JUDICIAL REVIEW

SCOPE OF JUDICIAL REVIEW

The constitutional validity of a legislative enactment or an executive order can be challenged in the Supreme Court or in the High Courts on the following 3 grounds.



- 1 It infringes the Fundamental Rights (Part III),
- 2 It is outside the competence of the authority which has framed it,
- 3 It is repugnant to the constitutional provisions.

SUPREME COURT

JUDICIAL REVIEW

HOW IS INDIAN JUDICIAL REVIEW DIFFERENT FROM THAT OF AMERICAN CONSTITUTION?

The scope of judicial review in India is narrower than what exists in the USA.



- 1 This is because, the American Constitution provides for 'due process of law' against that of 'procedure established by law' which is contained in the Indian Constitution.

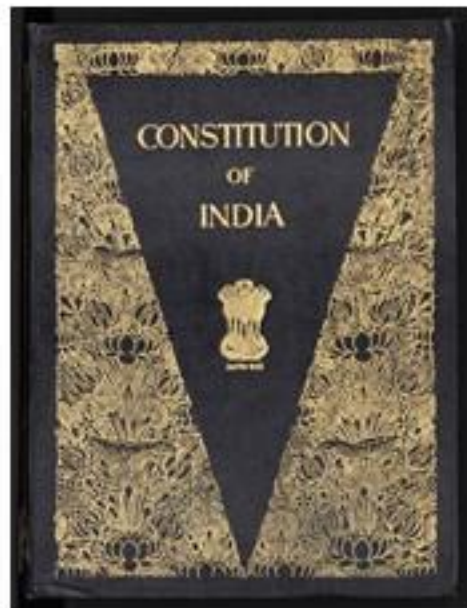
- 2 "Due process"- It can declare laws violative of these rights void not only on substantive grounds of being unlawful, but also on procedural grounds of being unreasonable.

- 3 "Procedure established by law"- Our SC examines only the substantive question i.e., whether the law is within the powers of the authority concerned or not. It is not expected to go into the question of its reasonableness.

SUPREME COURT

JUDICIAL REVIEW

JUDICIAL REVIEW OF THE NINTH SCHEDULE



Article 31B provides a degree of immunity to certain laws

- 1** Article 31B saves the acts and regulations included in the Ninth Schedule from being challenged and invalidated on the ground of contravention of any of the FRs.
- 2** However, in a significant judgement delivered in I.R. Coelho case, the Supreme Court ruled that there could not be any blanket immunity from judicial review of laws included in the Ninth Schedule.
- 3** The court held that judicial review is a 'basic feature' of the constitution and it could not be taken away by putting a law under the Ninth Schedule.

SUPREME COURT

JUDICIAL ACTIVISM

Justice V.R. Krishna Iyer, Justice P.N. Bhagwati, Justice O. Chinnappa Reddy and Justice D.A. Desai laid the foundations of judicial activism in the country.

MEANING OF JUDICIAL ACTIVISM



1

Judicial activism denotes the proactive role played by the judiciary in the protection of the rights of citizens and in the promotion of justice in the society.

2

It is the antithesis of “judicial restraint”, which means the self-control exercised by the judiciary.

3

It is the judicial activism of the Supreme Court which is the major factor for the rise of PIL.

SUPREME COURT

JUDICIAL ACTIVISM

6 **Biographic fears:** What would be my place in national affairs after superannuation if I overdo this kind of litigation?

5 **Democratic fears:** Is a profusion of public interest litigation nurturing democracy or depleting its potential for the future?

4 **Legitimation fears:** Are not they causing depletion of their symbolic and instrumental authority by passing orders in public interest litigation which may be bypassed or ignored?



1 **Ideological fears:** Are they usurping powers of the legislature, the executive or of other autonomous institutions in a civil society?

2 **Epistemic fears:** Do they have enough knowledge in economic matters of a Manmohan Singh, in scientific matters of the captains of the CSIR, etc?

3 **Management fears:** Are they doing justice by adding this kind of litigation work load to a situation of staggering growth of arrears?

JUDICIAL ACTIVISM Vs. JUDICIAL RESTRAINT

MEANING OF JUDICIAL RESTRAINT

RESTRAINT Vs. ACTIVISM



- 1 Judicial activism and judicial restraint are the two alternative judicial philosophies in the United States.
- 2 Those who subscribe to judicial restraint contend that the role of judges should be scrupulously limited; their job is merely to say what the law is, leaving the business of law-making where it properly belongs, that is, with the legislators and the executives.

SUPREME COURT

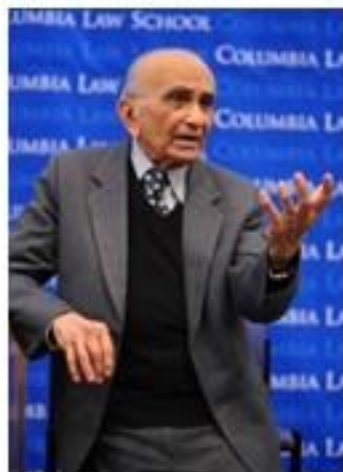
PUBLIC INTEREST LITIGATION

INTRODUCTION

Public Interest litigation



V.R. Krishna Iyer



P.N. Bhagwati

- 1 The PIL is a product of the judicial activism role of the Supreme Court.
- 2 It was introduced in the early 1980s.
- 3 Justice V.R. Krishna Iyer and Justice P.N. Bhagwati were the pioneers of the concept of PIL.
- 4 PIL is also known variously as Social Action Litigation (SAL), Social Interest Litigation (SIL) and Class Action Litigation (CAL).

SUPREME COURT

PUBLIC INTEREST LITIGATION

RELAXATION OF “LOCUS STANDI” IN PIL



- 1 The introduction of PIL in India was facilitated by the relaxation of the traditional rule of 'locus standi'.
- 2 According to this rule, only that person whose rights are infringed alone can move the court for the remedies, whereas, the PIL is an exception to this traditional rule.

PUBLIC INTEREST LITIGATION

RELAXATION OF “LOCUS STANDI” IN PIL

Vishakha
and
others v
state of
Rajasthan



PIL to Court — This Game must be **BANNED** in India

3

Under the PIL, any public-spirited citizen or a social organisation can move the court for the enforcement of the rights of any person or group of persons who because of their poverty or ignorance or socially or economically disadvantaged position are themselves unable to approach the court for the remedies.

4

Thus, in a PIL, any member of the public having ‘sufficient interest’ can approach the court for enforcing the rights of other persons and redressal of a common grievance.

SUPREME COURT

PUBLIC INTEREST LITIGATION

FEATURES OF PIL



- 1 PIL is a strategic arm of the legal aid movement and is intended to bring justice within the reach of the poor masses.
- 2 PIL is brought before the Court not for the purpose of enforcing the right of one individual against another as happens in the case of ordinary litigation, but it is intended to promote and vindicate public interest.
- 3 In PIL, the role held by the Court is more assertive than in traditional actions; it is creative rather than passive and it assumes a more positive attitude in determining acts.

SUPREME COURT

PUBLIC INTEREST LITIGATION

GUIDELINES FOR ADMITTING PIL

- 1** The PIL has now come to occupy an important field in the administration of law.
- 2** It should not be allowed to become 'Publicity Interest Litigation' or 'Politics Interest Litigation' or 'Private Interest Litigation' or 'Paisa Interest Litigation' or 'Middle-class Interest Litigation' (MIL).
- 3** The Supreme Court, in this context, observed: "PIL is not a pill or a panacea for all wrongs".
- 4** It was essentially meant to protect basic human rights of the weak and the disadvantaged.
- 5** There have been, in recent times increasingly instances of abuse of PIL.
- 6** Therefore, there is a need to reemphasize the parameters within which PIL can be resorted to by a petitioner and entertained by the court.

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

K. Victor Babu

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